

Schedule of Court Costs

Criminal Court Costs for Circuit Court Offenses and Violations

Civil Filing Fees and Court Costs

Court Costs for Supreme Court Appeal Filings

Rev. July 1, 2026

SOUTH DAKOTA UNIFIED JUDICIAL SYSTEM
Schedule of Court Costs - *Criminal Cases Only*
Effective July 1, 2020

	LIQUIDATED COSTS	COURT AUTOMATION SURCHARGE	VICTIM'S COMPENSATION SURCHARGE	TOTAL COURT COSTS
<i>CRIMINAL</i> COURT COSTS FOR CIRCUIT COURTS				
All felonies	\$50.00	\$61.50	\$5.00	\$116.50
All Class 1 misdemeanors	\$50.00	\$41.50	\$5.00	\$96.50
Class 2 misdemeanors (violations of state law)	\$50.00	\$23.50	\$5.00	\$78.50
Class 2 misdemeanors (parking violations of state law) **	\$50.00	\$23.50	\$0.00	\$73.50
All violations of county or municipal ordinances	\$50.00	\$17.50	\$5.00	\$72.50
All violations of administrative rules with criminal penalties	\$50.00	\$17.50	\$5.00	\$72.50
Petty Offenses	\$0.00	\$0.00	\$0.00	\$0.00

* According to SDCL 25-10-1, effective July 1, 2011, any person convicted of a crime involving domestic violence or domestic abuse, the court shall order additional court costs of \$25 to be paid to the clerk of courts.

**According to SDCL 23A-28B-42, the Victim's Compensation Surcharge does not apply to violations relating to parking of vehicles.

SOUTH DAKOTA UNIFIED JUDICIAL SYSTEM

Guide to Filing Fees and Court Costs - Civil Filings Only

Effective July 1, 2026

		FILING FEE	COURT AUTOMATION SURCHARGE	LAW LIBRARY FEE	TOTAL COURT COSTS
Probate					
	Estate	\$75.00	\$40.00	\$7.00	\$122.00
	Termination	\$25.00	\$40.00	\$7.00	\$72.00
	Special Administration	\$25.00	\$40.00	\$7.00	\$72.00
	Determination of Inheritance Tax	\$25.00	\$40.00	\$7.00	\$72.00
	Guardianships (includes all subsequent papers)	\$25.00	\$40.00	\$7.00	\$72.00
	Safekeeping and Filing of Wills	\$2.00	\$0.00	\$0.00	\$2.00
Civil					
	Divorce	\$50.00	\$40.00	\$7.00	\$97.00
	Child Support Modification	\$50.00	\$0.00	\$0.00	\$50.00
	Civil cases filed for jury or court trial	\$25.00	\$40.00	\$7.00	\$72.00
	Default Judgment	\$25.00	\$40.00	\$7.00	\$72.00
	Eviction	\$25.00	\$40.00	\$7.00	\$72.00
	Expungement	\$25.00	\$40.00	\$7.00	\$72.00
	Foreclosure	\$25.00	\$40.00	\$7.00	\$72.00
	Quiet Title	\$25.00	\$40.00	\$7.00	\$72.00
	Appeals from an Administrative Agency	\$25.00	\$40.00	\$7.00	\$72.00
	Adoptions	\$25.00	\$40.00	\$7.00	\$72.00
	Name Change	\$25.00	\$40.00	\$7.00	\$72.00
	Issuing the following:				
	Transcript of Judgment	\$5.00	\$0.00	\$0.00	\$5.00
	Execution	\$5.00	\$0.00	\$0.00	\$5.00
	Special Execution	\$5.00	\$0.00	\$0.00	\$5.00
	Writ or Commission	\$5.00	\$0.00	\$0.00	\$5.00
	Filing and/or Docketing a Transcript of Judgment	\$5.00	\$0.00	\$0.00	\$5.00
	Renewing a Judgment	\$5.00	\$0.00	\$0.00	\$5.00
Miscellaneous					
	Answer Fee or Responsive Pleading (civil)	\$25.00	\$0.00	\$0.00	\$25.00
	Record Searches (each name)	\$20.00	\$0.00	\$0.00	\$20.00
	Subpoenas (civil)	\$2.00	\$0.00	\$0.00	\$2.00
	Authenticated Copies	\$15.00	\$0.00	\$0.00	\$15.00
Small Claims					
	Where the amount in controversy is:	Filing Fee + Postage			
	\$100 or less	\$4.00 + \$11.84	\$6.00	\$3.00	\$24.84
	\$100.01 to \$1,000.00	\$10.00 + \$11.84	\$6.00	\$3.00	\$30.84
	\$1,000.01 to \$3,999.99	\$20.00 + \$11.84	\$6.00	\$3.00	\$40.84
	\$4,000.00 to \$12,000.00	\$20.00 + \$11.84	\$8.00	\$3.00	\$42.84
	* each additional defendant add:	\$11.84	\$0.00	\$0.00	\$11.84
	Transfer to Circuit Court	\$35.00	\$0.00	\$0.00	\$35.00
Supreme Court Appeals					
	To Clerk of Circuit Court	\$50.00	\$0.00	\$0.00	\$50.00
	To Clerk of Supreme Court	\$50.00	\$50.00	\$0.00	\$100.00

*No court cost may be collected in any civil action or proceeding for judicial remedy commenced by the state, a county, a municipality, or a school district.